

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR
CERTAIN COMMERCIAL ITEMS IN ACCORDANCE WITH FEDERAL
ACQUISITION REGULATION (FAR) 13.5**

On the basis of the following justification, I hereby approve the use of a sole source proposed contractual action pursuant to the authority of - *10 U.S.C. 3204(a)(1)*

1. Agency and Contracting Activity

Naval Sea Systems Command contracting activity Northwest Regional Maintenance Center/Puget Sound Naval Shipyard and Intermediate Maintenance Facility, Bremerton, WA proposes to enter into a sole source contract with Curtiss-Wright Fleet Solutions, Chula Vista, CA using simplified procedures for certain commercial items included in FAR subpart 13.5.

Contractor Name: Curtiss-Wright

POC: Omar Maestas

Address: 1675 Brandywine Avenue Suite F, Chula Vista, CA 91911

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2. The nature and/or description of the action being approved.

The contemplated action for approval is the award of a sole source contract with Curtiss-Wright Fleet Solutions to perform the following: *Inspect and repair #1, #2 and #3 High Pressure Air Compressors (HPAC); #1 and #2 High Pressure Air Dehydrators (HPAD); Low Pressure Air Compressor (LPAC); and Low Pressure Air Dehydrator (LPAD).*

3. A description of the supplies and/or services required, including the delivery schedule and/or the period of performance (inclusive of all option periods), and the estimated dollar value of the acquisition.

Period of Performance:

01/03/25 – 03/28/26

Total Estimated Dollar Value: \$984,938.31

PSNS&IMF, in support of a [REDACTED], as part of ship repair and maintenance, requires OEM to perform in place groom, inspect, test, repair, and clean of (3) high pressure air compressors, (2) high pressure air dehydrators, (1) low pressure air compressor and (1) low pressure air dehydrator. All testing and evaluations must be completed and the units successfully restored by [REDACTED] for the HPACs/HPADs and [REDACTED] for the LPAC/LPAD in order to return the ship back to the fleet and meet mission scheduling. The Governments minimum needs have been verified by the certifying technical and requirements personnel.

4. The statutory authority permitting sole source.

10 U.S.C 3204(a)(1): Only one responsible source and no other supplies will satisfy agency requirement.

Mission Critical Services are required to support the ship's operational requirements. Air Compressors and Dehydrators must be maintained to meet the high demand incurred during the ship's mission. Failure to repair the system could result in lost capability, inability to recover from incident, and jeopardize mission schedule resulting in an incalculable monetary loss.

5. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring use of the authority.

Pursuant to 10 U.S.C. 3204(a)(1), the requirement described above has been determined to be achievable by only one source. Curtiss-Wright is the government authorized OEM for 13NL45 HPAC and MD-663C LPAC. Curtiss Wright has teaming agreements for the other equipment (HPADs and LPAD) with Gardner Denver Nash LLC and Dresser-Rand Company. Technical representatives are factory trained and certified to work on this equipment. Curtiss-Wright is the authorized OEM, and the only manufacturer in the United States with access to the OEM drawings and proprietary information, with the technical expertise to perform required repairs and testing. All components and parts are proprietary to Curtiss-Wright and cannot be purchased from other vendors.

Curtiss-Wright is the NAVSEA authorized provider for submarine HPACs, HPADs, LPAC, and LPAD. Existing units are Curtiss-Wright HPACs (formerly Dresser Rand), HPADs (formerly Air-Dry Corporation of America), LPAC (formerly Nash Engineering Company), and LPAD (formerly Air-Dry Corporation of America). These complex and highly engineered units are mandated by NAVSEA for submarine applications. All parts must be OEM provided to ensure proper operation of the units.

6. A description of efforts made to ensure offers/quotes are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized in FEDBIZOPPS (as required by FAR 5.2) and, if not, which exception under 5.202 applies.

In accordance with FAR subparagraph 5.203(a) (1), this requirement has been synopsized on BETA SAM.GOV, on 16 October 2024, publicizing the Government's intent to sole source. The Government received no responses from any interested sources who identified they were capable of performing the requirement. In accordance with 10 U.S.C 3204(a)(1), the requirement is only available from a single source which possesses capability, knowledge, rights in data, patents, drawings and copyright rights. A similar contract (N4523A23C0800) showed no interested parties in the past. Therefore, no other source will satisfy the needs of the Government.

7. The anticipated dollar value of the proposed acquisition, including options if applicable, and a determination by the contracting officer that the anticipated cost to the government will be fair and reasonable. The Contracting Officer has determined that the anticipated cost to the

Government for the supplies/services covered by the sole source justification will be fair and reasonable

8. A description of the market research conducted and the results or the reason market research was not conducted.

Previous market research findings that Curtiss-Wright, as the OEM, is the only source available to complete the requirements of this contract remain unchanged. This requirement was synopsisized on BETA SAM.gov publicizing the Government's intent to sole source and received no other interested parties. For reasons discussed above, no company other than Curtiss-Wright can provide the required interpretations and inspections needed to properly perform the requirement. Curtiss-Wright holds the proprietary information and technical cognizance required to perform repairs. See above in Paragraph 6.

Looking back at the contract from 2023, the Statement of Work included similar repair requirements for HPACs, HPADs, LPACs and LPADs. This requirement was also synopsisized on BETASAM.gov publicizing the Government's intent to sole source and received no responses from any other interested parties to demonstrate they were capable of performing this work.

9. A statement of any actions the agency will take to remove or overcome any future barriers to competition.

For the reasons set forth in Paragraph 5, PSNS&IMF has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, PSNS&IMF will assess whether competition for future requirements is feasible.

Certification

Requirements Generator:

I certify that the facts and representations under my cognizance that are included in this justification and that form a basis for this justification are complete and accurate.

DATE

Reviewed by & Concur:

I certify that the facts and representations under my cognizance that are included in this justification and that form a basis for this justification are complete and accurate.

DATE

Legal Review:

I reviewed this justification and find it to be legally sufficient.

DATE

Contracting Officer:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

DATE